

The Court-fees (Amendment) Act, 1939

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[The Court-fees \(Amendment\) Act, 1939](#)

[Bihar Act](#)

[17 of 1939](#)

[Published in the Bihar Gazette of the 22nd November, 1939.](#)

[An Act to amend the Court-fees Act, 1870, in its application to Bihar.](#)

[Whereas it is expedient to amend the Court-fees Act, 1870, in its application to the Province of Bihar in the manner hereinafter appearing;](#)

[It is hereby enacted as follows:-](#)

[1.](#)

[Short title, extent and commencement.](#)

[\(1\)](#)

This Act may be called the Bihar Court-fees (Amendment) Act, 1939.

(2)

It extends to the whole of the [State]

[Substituted by Adaptation of Laws Order.]

of Bihar.

(3)

It shall come into force on such [date]

[The Act came into force on the 1st May, 1940, vide Notification No. 1965/J, dated 10.4.1940.]

as the [State]

[Substituted by Adaptation of Laws Order.]

Government may by notification in the Official Gazette appoint.

2.

Amendment of Schedule I of Act 7 of 1870.

- In Schedule I of the Court-fees Act, 1870:-

(a)

after the entries in the second column against Article I, the following proviso shall be added, namely:-

"Provided that the maximum fee leviable on a plaint or memorandum of appeal shall be ten thousand rupees"; and

(b)

in the Table of rates of ad valorem fees leviable on the institution of suits, for the portion beginning with the words "for example" and ending with the figures "9,660", the following shall be substituted, namely:-

"subject to a maximum of ten thousand rupees", for example-

When the amount or value of the subject-matter

exceeds

But does not exceed

Proper fee

Rs.

Rs.

Rs.

a.

p.

3,00,000

3,05,000

3660

0

0

4,00,000

4,05,000

4410

0

0

5,00,000

5,05,000

5860

0

0

6,00,000

6,05,000

5910

0

0

7,00,000

7,05,000
6660
0
0
8,00,000
8,05,000
7410
0
0
9,00,000
9,05,000
8160
0
0
10,00,000
10,05,000
8910
0
0
11,00,000
11,05,000
9660
0
0
11,45,000
11,50,000
9997
0
0

and for all amounts and values exceeding Rs. 11,50,000 the Court-fees is Rs. 10,000".

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